

DENTAL DYNAMIX IMAGING LTD

TERMS AND CONDITIONS OF SERVICE

IT support • dental imaging • equipment • maintenance • backup services

Version	August 2026
Applies to	All Services supplied by Dental Dynamix Imaging Ltd
Contract documents	These Terms, together with the applicable Quotation, Order Confirmation and Service Agreement
Status	Final – Approved for Issue

These Terms supersede all earlier general terms issued by the Company. They do not, by themselves, include every listed service. The Services purchased by the Client are those expressly identified in the applicable Contract Documents.

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1. Definitions and interpretation

- 1.1 "Agreement" means the Contract Documents read together, including these Terms.
- 1.2 "Business Day" means a day other than Saturday, Sunday or a public holiday in England.
- 1.3 "Business Hours" means 09:00 to 17:00 on a Business Day, unless the applicable Service Agreement states otherwise.
- 1.4 "Charges" means all fees, expenses and other sums payable for the Services, Equipment, licences, parts, travel and related work.
- 1.5 "Client" means the business, dental practice, organisation or other person purchasing Services or Equipment from the Company.
- 1.6 "Client Data" means all data, records, images, databases, files, credentials and other information supplied by or processed for the Client.
- 1.7 "Company" means Dental Dynamix Imaging Ltd.
- 1.8 "Contract Documents" means in descending order of priority: a signed Service Agreement or Order Confirmation; the applicable Quotation or Proposal; these Terms; and any incorporated schedule or policy, unless a higher-ranking document expressly states otherwise.
- 1.9 "Equipment" means hardware, imaging equipment, computers, servers, networking devices, accessories or other technology supplied, rented, installed or supported by the Company.
- 1.10 "Services" means only the services expressly identified in the applicable Contract Documents.
- 1.11 "Service Agreement" means a written agreement identifying recurring Services, scope, term, Charges and any service-specific commitments.
- 1.12 "Supported Environment" means systems meeting the requirements in clause 6 and any specifications notified by the Company.
- 1.13 "Third-Party Product" means software, cloud service, network, equipment, consumable or service not developed and controlled by the Company.
- 1.14 References to writing include email. 'Including' and similar words are illustrative and do not limit the words preceding them. Headings do not affect interpretation.

2. Contract formation and priority

- 2.1 A Quotation is an invitation to order and may be withdrawn or amended before acceptance. An Agreement is formed when the Company accepts the Client's order in writing, begins supplying the Services or Equipment at the Client's request, or both parties sign a Service Agreement.
- 2.2 The Client confirms that the person placing an order has authority to bind the Client.
- 2.3 If Contract Documents conflict, the priority stated in the definition of Contract Documents applies. A document changes these Terms only to the extent that it expressly identifies the provision being changed.
- 2.4 Estimates of time, cost, delivery or completion are given in good faith but are not guaranteed unless expressly described as guaranteed in a signed Contract Document.
- 2.5 These Terms apply to every Quotation, order and supply of Services or Equipment by the Company. By accepting a Quotation, placing an order, instructing the Company to proceed, permitting the supply of Equipment or commencement of Services, or continuing to receive or use any Dental Dynamix services, the Client agrees to be bound by these Terms. No signature is required for these Terms to take effect.

3. Services and service standards

- 3.1 The Company shall provide the Services with reasonable skill and care. Services may be delivered remotely, on site, through monitoring tools or through subcontractors where appropriate.
- 3.2 The Company shall use reasonable efforts to respond to support requests. Unless a signed Service Level Agreement expressly states otherwise, response and resolution times are targets only and time is not of the essence.
- 3.3 A response means acknowledgement and commencement of initial investigation, not resolution. Priority is determined by the Company acting reasonably, having regard to operational impact, affected users, safety, available workarounds and whether the issue is within scope.

- 3.4** Work outside scope, including investigation ultimately showing an excluded cause, is chargeable at the Company's then-current rates. The Company will seek approval before material chargeable work where reasonably practicable, but may take proportionate urgent action to protect safety, security, data or system integrity.
- 3.5** The Company may use appropriately qualified employees, agents and subcontractors and remains responsible for the Services it has contracted to provide, subject to this Agreement.

4. Client responsibilities and access

- 4.1** The Client shall provide timely and safe access to premises, Equipment, systems, data, staff, decisions, credentials, licences, power, connectivity and information reasonably required to perform the Services.
- 4.2** The Client is responsible for the accuracy and completeness of its instructions and information; lawful operation of its business and clinical systems; appropriate user training; physical and environmental conditions; and following the Company's and manufacturers' reasonable instructions.
- 4.3** The Client shall maintain valid licences, suitable insurance, appropriate security policies and independent business-continuity arrangements proportionate to its operations.
- 4.4** The Company is not responsible for delay, additional cost or failure caused by missing access, inaccurate information, delayed approvals, unsafe conditions, unavailable staff or unsuitable infrastructure. Resulting work and repeat attendance may be charged.
- 4.5** The Client shall promptly notify the Company of suspected faults, cyber incidents and planned changes to servers, workstations, networks, internet connections, firewalls, domain services, databases, imaging software, backup locations or user permissions.

5. Charges, invoices and price changes

- 5.1** Charges are exclusive of VAT unless expressly stated otherwise. The Client shall pay invoices in full, without set-off or deduction, within 30 days of the invoice date unless a Contract Document states a different period.
- 5.1(a)** Notwithstanding clause 5.1, all Charges for Equipment and its associated installation must be paid in full in cleared funds before installation takes place, unless the applicable Quotation expressly provides for an agreed staged-payment, finance or other payment arrangement. The Company is not required to deliver or install Equipment until the required payment has been received.
- 5.2** A genuine invoice dispute must be notified in writing within 10 Business Days of receipt, identifying the disputed amount and reasons. The undisputed balance remains payable. The parties shall work in good faith to resolve the dispute.
- 5.3** Late sums may bear statutory interest and recovery costs under the Late Payment of Commercial Debts (Interest) Act 1998. The Company may also recover reasonable third-party collection costs to the extent permitted by law.
- 5.4** Travel, mileage, parking, accommodation, carriage, parts, licences and third-party costs may be charged where stated in the Contract Documents or reasonably incurred in supplying authorised work.
- 5.5** Recurring Charges may be reviewed on renewal or on at least 30 days' written notice. Third-party licence, cloud, supplier, tax or regulatory cost increases may be passed through on reasonable notice. A fixed-term price changes only where the Agreement permits it or the Client agrees.

6. IT support and supported environments

- 6.1** IT support applies only to assets, sites, users and products included in the applicable Service Agreement.
- 6.2** A Supported Environment must use vendor-supported operating systems and software, valid licences, suitable hardware, stable network and power, functioning security controls and specifications reasonably notified by the Company.
- 6.3** The Company may identify a system as unsupported, obsolete, unsafe or below specification. Assistance may then be declined, limited or provided on a chargeable best-efforts basis without any assurance of compatibility or outcome.

- 6.4** The Client remains responsible for deciding whether and when to authorise recommended replacement, upgrade or remediation. The Company is not responsible for consequences of a recommendation the Client does not follow, to the extent caused by that decision.

7. Remote support, credentials and monitoring

- 7.1** The Client authorises reasonable remote access, monitoring and management required for the Services, subject to the data-processing terms in Schedule 3.
- 7.2** Remote support depends on functioning power, connectivity, systems and remote-access tools. On-site attendance is not included unless stated in the Service Agreement or separately authorised.
- 7.3** Credentials required for service delivery may be held in access-controlled systems using appropriate technical and organisational measures. The Client shall keep other credentials secure and notify the Company promptly when access must be changed or revoked.
- 7.4** Monitoring reduces risk but is not continuous human supervision and does not guarantee that every fault, security event or deterioration will be detected or prevented.

8. Routine maintenance and service visits

- 8.1** Routine maintenance is supplied only where expressly included and at the frequency stated in the Service Agreement. It may include relevant health checks, alert review, updates, patching, security checks, backup verification, performance checks and equipment communication tests.
- 8.2** The Company may determine whether maintenance is performed remotely or on site, taking account of scope, risk and technical requirements.
- 8.3** The Client shall keep relevant systems available during agreed maintenance windows and accepts that updates, restarts and testing may cause temporary disruption. The Company shall use reasonable efforts to minimise avoidable disruption.
- 8.4** A call-out may be chargeable where the fault is outside scope, cannot be reproduced, is caused by user error or third-party interference, or access/site readiness prevents the planned work.
- 8.5** Preventative maintenance reduces risk but does not guarantee uninterrupted or fault-free operation.

9. Backup, restoration and disaster recovery

- 9.1** Managed backup is supplied only where expressly included. The selected data, schedule, destination and retention are those stated in the Service Agreement or Schedule 2 completed for the Client.
- 9.2** The Client shall identify all data requiring protection and notify the Company before data is added, moved, renamed or materially increased. The Company is not responsible for data outside the agreed selection or an undisclosed location.
- 9.3** A reported successful backup confirms completion of the configured backup process; it does not independently verify the accuracy, clinical integrity or usability of every source file. Corrupt or encrypted source files may be backed up in that state.
- 9.4** Restoration is subject to backup integrity, data volume, connectivity, hardware, encryption keys and third-party systems. Unless expressly guaranteed in an SLA, restoration times are estimates and restoration success is not guaranteed.
- 9.5** Backup is not long-term archiving or a complete disaster-recovery service. Rebuilding hardware, networks, domain services, applications, databases or third-party environments is chargeable unless expressly included.
- 9.6** The Client remains responsible for statutory and clinical retention decisions, business continuity and maintaining any additional backup or archive required by its risk assessment.

10. Cybersecurity and security risks

- 10.1** The Company may supply or recommend security controls, but no control can guarantee protection against malware, ransomware, phishing, unauthorised access, data loss or other cyber threats.
- 10.2** The Client remains responsible for staff awareness, acceptable-use rules, access approvals, password practices, physical security and promptly implementing agreed risk-reduction measures.

- 10.3** Unless expressly included, incident response, forensic investigation, ransom negotiation, regulatory advice, rebuilding and recovery from a cyber incident are outside scope and chargeable.
- 10.4** The Company may isolate systems, disable access or suspend affected Services where reasonably necessary to contain an actual or suspected security risk, and shall notify the Client as soon as reasonably practicable.

11. Third-party products and providers

- 11.1** Third-Party Products are subject to their suppliers' terms, availability, licensing, compatibility, lifecycle and support decisions. The Company does not control and does not warrant their uninterrupted performance.
- 11.2** The Company may assist with a third-party fault or supplier liaison, but cannot guarantee resolution. Supplier charges and work outside scope are chargeable.
- 11.3** The Client shall give reasonable advance notice of third-party work affecting supported systems and, where practicable, coordinate that work with the Company. Emergency work may proceed without prior consent, but the Client shall notify the Company promptly afterwards.
- 11.4** The Company is not responsible for faults, delay, incompatibility, data loss or security issues to the extent caused by unauthorised or uncoordinated changes by the Client or a third party. Diagnosis and remediation may be charged and support may be suspended until stability and security are restored.

12. Equipment supply and installation

- 12.1** Equipment descriptions and specifications are subject to reasonable manufacturer changes. Delivery dates are estimates unless expressly guaranteed.
- 12.2** The Client shall prepare the site in accordance with notified requirements, including safe access, adequate space, structural suitability, power, network connectivity, ventilation and environmental conditions.
- 12.3** Delays, repeat attendance, storage or additional work caused by site unreadiness or inaccurate information may be charged.
- 12.4** Risk in Equipment passes on delivery. Title to Equipment sold by the Company remains with the Company until all sums due for that Equipment have been paid in full, but the Client may use it in the ordinary course of business until the Company lawfully requires its return.
- 12.5** Installation may cause reasonable temporary disruption. The Client shall ensure a current verified backup before installation, migration or material system change unless backup work is expressly included.
- 12.6** Acceptance testing or sign-off confirms apparent installation and operation at that time and does not remove rights or obligations that cannot lawfully be excluded.

13. Warranty and Total Aftercare

- 13.1** Equipment supplied by the Company is covered by the applicable manufacturer's warranty for the period and on the terms specified by the manufacturer. Unless expressly stated in writing, the Company provides no separate or additional contractual warranty.
- 13.2** The warranty period begins on the date determined by the manufacturer, which may be delivery, installation, commissioning or registration. Periods may differ for Equipment, components, accessories and software.
- 13.3** The Company may assist with claims for Equipment it supplied. Claims remain subject to diagnosis and manufacturer approval, which the Company cannot guarantee.
- 13.4** Unless expressly included, warranty does not include Company labour, travel, attendance, removal, reinstallation, carriage, configuration, data migration, consequential third-party work or loan Equipment. If a claim is rejected or no covered fault is found, these costs may be charged.
- 13.5** Warranty does not normally cover misuse, neglect, user error, accident, cosmetic damage, consumables, wear and tear, unsuitable power or environment, incorrect cleaning, unapproved parts or consumables, relocation, unauthorised repair or modification, third-party interference, or a fault outside the warranted Equipment. The manufacturer's terms determine claim acceptance.

- 13.6** Total Aftercare applies only where expressly purchased. Its inclusions, exclusions, term and Charges are stated in the relevant Service Agreement and it does not extend the manufacturer's warranty unless expressly stated.
- 13.7** Nothing in this Agreement excludes or restricts a right or remedy that cannot lawfully be excluded or restricted.

14. Rental and loan equipment

- 14.1** Rented and loan Equipment remains the property of the Company or relevant finance provider. The Client shall keep it secure, insured where required, in good condition and at the approved location, subject to fair wear and tear.
- 14.2** The Client shall not sell, charge, dispose of, relocate, modify or allow unauthorised repair of such Equipment.
- 14.3** Loss, theft or damage must be reported promptly. The Client is responsible for reasonable repair or replacement cost to the extent caused by its breach, negligence, misuse or failure to safeguard the Equipment.
- 14.4** Loan or replacement Equipment is subject to availability, compatibility and the applicable Service Agreement. Any delivery time is a target unless expressly guaranteed.
- 14.5** At the end of entitlement, the Client shall make Equipment available for collection or return it as instructed. Continued possession may incur Charges. The Company may enter the Client's premises at a reasonable agreed time to recover its Equipment, subject to applicable law.

15. Data protection and confidentiality

- 15.1** Each party shall comply with applicable data-protection law. For Client Data processed by the Company on the Client's documented instructions, the Client is controller and the Company is processor, subject to Schedule 3.
- 15.2** Each party may also act as an independent controller for personal data it uses for its own legitimate business purposes, such as contacts, account administration, billing, compliance and legal claims.
- 15.3** Each party shall keep the other's confidential information confidential and use it only for the Agreement. This does not apply to information lawfully known without restriction, independently developed, public other than through breach, or lawfully received from another source.
- 15.4** Confidential information may be disclosed to personnel, professional advisers, insurers, suppliers and authorities who need it and are bound by appropriate duties, or where disclosure is legally required.
- 15.5** The confidentiality obligations continue for five years after termination, and indefinitely for trade secrets and personal data for as long as the information remains protected by law.

16. Intellectual property and software licensing

- 16.1** Each party retains ownership of intellectual property it owned before the Agreement. The Company retains its tools, methods, templates, documentation and know-how.
- 16.2** On payment, the Client receives a non-exclusive, non-transferable licence to use Company-created deliverables for its internal business purposes, unless a Contract Document states otherwise.
- 16.3** Third-party software and cloud services are licensed, not sold, and are subject to supplier terms. The Client shall comply with licence restrictions and ensure sufficient licences for its users, devices and environments.

17. Suspension

- 17.1** The Company may suspend affected Services on reasonable notice where invoices are overdue, the Client materially breaches the Agreement, access is unsafe, a system presents a material security or integrity risk, or continued service may be unlawful.
- 17.2** Urgent suspension may occur without advance notice where reasonably necessary to protect people, systems, data or legal compliance. The Company shall explain the reason as soon as reasonably practicable.

- 17.3** Suspension does not waive Charges properly due. The Company shall restore Services within a reasonable time after the cause is remedied, subject to payment of reasonable reactivation or remediation costs where applicable.
- 17.4** The Company will not withhold access to Client-owned data solely as leverage for a disputed debt where doing so would be unlawful. Urgent restoration or export work may be subject to advance payment where invoices are overdue.

18. Term, renewal and termination

- 18.1** The term is stated in the applicable Service Agreement. Unless that document states otherwise, a recurring Service has an initial term of 12 months and then continues monthly until either party gives at least 30 days' written notice.
- 18.2** Notice cannot end a fixed term before its expiry unless this Agreement permits early termination. Where the Client terminates for convenience during a fixed term, or requests handover to another IT provider before the end of that term, Charges committed for the remainder of the fixed term remain payable, less costs the Company reasonably avoids.
- 18.3** Either party may terminate an affected Agreement by written notice if the other commits a material breach and, where the breach can be remedied, fails to remedy it within 14 days after written notice.
- 18.4** The Company may terminate immediately for persistent non-payment, fraud, unlawful use, serious abusive or threatening conduct, material security risk caused by the Client, insolvency or a breach that cannot reasonably be remedied.
- 18.5** Termination of one Service does not automatically terminate separate Services or third-party commitments unless stated in writing.

19. Consequences of termination and transition

- 19.1** On termination, all accrued invoices, authorised work, committed third-party Charges and other sums properly due become payable. Clauses intended to survive termination remain effective.
- 19.2** The Client shall return Company-owned Equipment and cease using terminated licences, software and access rights.
- 19.3** At the Client's written request, the Company shall provide reasonable transition assistance and export Client Data in an available standard format. Unless expressly included, transition, extraction, transfer, meetings and third-party liaison are chargeable.
- 19.4** The Client must request export before the applicable deletion date. After termination, Client Data may be deleted in accordance with the Service Agreement, Schedule 2, Schedule 3 and legal obligations. Backup retention is not extended merely because the Agreement ends.
- 19.5** The Client is responsible for appointing its replacement provider and verifying the completeness and usability of transferred data and systems.
- 19.6** Where, at the Client's request, the Company provides system credentials, configuration information or other handover information to the Client or a replacement IT provider before the contractual termination date, the following provisions apply:
- 19.6(a)** the Company's operational responsibility for the affected systems shall cease immediately upon completion of the handover;
- 19.6(b)** the Company may remove or disable its remote-access, monitoring, management, backup and security tools, subject to any Services that the Client has expressly agreed to retain;
- 19.6(c)** the Company shall have no responsibility for changes, faults, security incidents, data loss or disruption occurring after the Client or replacement provider assumes control, except to the extent directly caused by the Company before handover;
- 19.6(d)** completion of the handover does not shorten the fixed term, change the contractual termination date or release the Client from Charges, early-termination payments or committed third-party costs otherwise payable under the Agreement; and
- 19.6(e)** any further assistance requested after handover is subject to the Company's agreement and may be charged at its then-current rates.

20. Liability

- 20.1** Nothing excludes or limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot lawfully be excluded or limited.
- 20.2** Subject to clause 20.1, neither party is liable for indirect or consequential loss, or for loss of profit, revenue, anticipated savings, goodwill or business opportunity.
- 20.3** Subject to clause 20.1, the Company is not liable for loss or corruption of data except to the extent directly caused by its breach of the Agreement, and remains subject to the exclusions, dependencies and Client responsibilities applying to backup and restoration.
- 20.4** Subject to clause 20.1, the Company's total aggregate liability arising from an Agreement in any 12-month period shall not exceed 100% of the Charges paid or payable for the affected Services during that period. For a claim arising in the first 12 months, the cap is the Charges paid or payable from commencement to the event giving rise to the claim.
- 20.5** The Client shall take reasonable steps to mitigate loss and shall maintain insurance appropriate to its clinical, regulatory, cyber, data and business-interruption risks.
- 20.6** This clause is intended to allocate risk between commercial parties and applies to liability in contract, tort, negligence, misrepresentation, restitution and breach of statutory duty, to the extent permitted by law.

21. Force majeure

- 21.1** Neither party is liable for delay or failure caused by an event beyond its reasonable control that could not reasonably have been prevented or overcome, including widespread power or telecommunications failure, natural disaster, epidemic, industrial action, governmental action, supply-chain disruption or a qualifying cyberattack.
- 21.2** A cyberattack qualifies only to the extent it was beyond the affected party's reasonable control and could not reasonably have been prevented by appropriate security measures.
- 21.3** The affected party shall notify the other as soon as reasonably practicable, mitigate the effects and resume performance when able. Payment obligations already accrued are not excused.
- 21.4** If the event materially prevents a Service for more than 60 consecutive days, either party may terminate the affected Service on written notice without liability for future unperformed Services, but committed third-party costs and accrued Charges remain payable.

22. Disputes, notices and governing law

- 22.1** The parties shall first attempt in good faith to resolve a dispute through authorised senior representatives. Either party may propose mediation, but mediation is voluntary unless agreed in writing.
- 22.2** Formal notices must be in writing and delivered by hand, prepaid first-class post or email to the address stated in the Contract Documents or later notified for notices. Email is deemed received on the next Business Day unless a delivery failure is received.
- 22.3** Nothing prevents urgent court relief or debt recovery. The Agreement and any non-contractual obligations are governed by English law, and the courts of England and Wales have exclusive jurisdiction.

23. General provisions

- 23.1** The Agreement constitutes the entire agreement concerning its subject matter. Each party acknowledges that it has not relied on a statement not recorded in the Contract Documents, without excluding liability for fraud.
- 23.2** No variation is effective unless recorded in writing by authorised representatives. The Company may update operational or security policies on reasonable notice where the change does not materially reduce the contracted Services. Material changes to scope, Charges, term or liability require agreement or must follow an express contractual mechanism.
- 23.3** The Client may not assign the Agreement without the Company's written consent, not to be unreasonably withheld. The Company may assign it as part of a bona fide business transfer or to an affiliate capable of performing it, on written notice.

23.4 No person other than the parties has a right to enforce the Agreement under the Contracts (Rights of Third Parties) Act 1999.

23.5 If a provision is invalid or unenforceable, it shall be adjusted to the minimum extent necessary and the remaining provisions continue. A delay in enforcement is not a waiver. Rights and remedies are cumulative.

23.6 Nothing creates a partnership, joint venture, agency or employment relationship between the parties.

Schedule 1 – Service and operational rules

A. Support requests

A.1 Support requests must be submitted through the telephone number, email address or service portal notified by the Company. Requests sent to individual employees or personal messaging accounts may not be monitored or recorded.

A.2 The Client shall provide contact details, affected users and systems, symptoms, timing, business impact, recent changes and reasonable diagnostic information.

A.3 Out-of-hours support is available only where expressly included or separately accepted and may carry enhanced Charges.

B. Change control

B.1 Material changes, migrations, upgrades and installations may require a written scope, verified backup, maintenance window, approvals, testing and rollback plan.

B.2 Where the Client instructs work despite a documented risk or declines recommended safeguards, the Company may require written confirmation and is not responsible to the extent resulting loss is caused by that decision.

C. Clinical and regulatory boundaries

C.1 The Client remains responsible for clinical decisions, radiation-protection arrangements, statutory inspections, quality assurance, data retention and regulatory compliance unless a specific compliance service is expressly contracted.

C.2 Technical support does not constitute clinical, legal, regulatory or data-protection advice.

Schedule 2 – Managed backup service

Important: This Schedule applies only where Managed Backup is identified in the Client's Service Agreement. Client-specific selections in that agreement take precedence over this Schedule.

1. Configuration

S2.1 The Service Agreement shall identify, where applicable, protected devices or workloads, selected data, backup frequency, storage destination, encryption arrangements and retention period.

S2.2 Unless the Service Agreement states otherwise, backup is configured to run once each calendar day when the protected system and connectivity are available. This is a configuration standard, not a guarantee that every scheduled run will succeed.

S2.3 Unless the Service Agreement states otherwise, the standard rolling retention period is 21 days. Older recovery points are automatically deleted and are not an archive.

2. Monitoring and notifications

S2.4 The Company shall use reasonable efforts to monitor backup status and investigate alerts within Business Hours. The Client shall review reports made available to it and promptly report unexpected exclusions, failures or changes.

S2.5 The Client shall keep protected systems powered, connected and accessible and shall not disable, remove or reconfigure backup software without approval.

3. Restoration

- S2.6** Restoration begins after the Company has sufficient instructions, access, destination capacity and authority. The Client shall identify the required data and desired recovery point.
- S2.7** Unless a Service Agreement states otherwise, the Company aims to commence restoration within one Business Day and complete ordinary restoration within 72 Business Hours. These are targets, not guaranteed service levels, and may be affected by data volume, connectivity, hardware and third-party systems.
- S2.8** Periodic test restoration is included only if expressly stated. The Client is responsible for confirming that restored application and clinical data is complete and usable.

4. End of service

- S2.9** On termination, new backups cease. Existing recovery points may be deleted at any time after the service end date unless a written export or extension is agreed in advance. Export, media, egress and assistance may be chargeable.

Schedule 3 – Data processing terms

Roles: For personal data in Client Data processed to deliver the Services, the Client is controller and the Company is processor. These terms supplement the remainder of the Agreement.

1. Processing details

- S3.1** Subject matter and purpose: IT support, remote access, monitoring, maintenance, equipment and imaging support, backup, restoration, hosting and related technical services selected by the Client.
- S3.2** Duration: the term of the relevant Service plus any limited retention, transition or deletion period required by the Agreement or law.
- S3.3** Nature of processing may include access, collection, recording, organisation, storage, retrieval, consultation, transmission, troubleshooting, backup, restoration, alteration and deletion.
- S3.4** Data subjects may include patients, prospective patients, employees, clinicians, contractors, suppliers and other persons whose data is held in Client systems.
- S3.5** Personal data may include identity and contact information, appointment and account information, user and system records, images, clinical and health data, special-category data, communications, device identifiers, access logs and credentials, as determined by the Client's systems and instructions.

2. Processor obligations

- S3.6** The Company shall process personal data only on the Client's documented instructions, including the Agreement and written support instructions, unless required by law. If legally permitted, it shall inform the Client before legally required processing.
- S3.7** The Company shall ensure that persons authorised to process personal data are subject to confidentiality obligations and receive appropriate access and security guidance.
- S3.8** The Company shall implement appropriate technical and organisational measures taking account of risk, available technology, cost and the nature of the processing. Measures may include access controls, authentication, encryption where appropriate, logging, patching, backup protection, incident procedures and supplier assurance.
- S3.9** The Company shall notify the Client without undue delay after becoming aware of a personal-data breach affecting Client Data and provide available information reasonably required for the Client's assessment and reporting obligations.
- S3.10** Taking account of the nature of processing, the Company shall provide reasonable assistance with data-subject requests, security, breach assessment, impact assessments and regulator consultation. Assistance beyond the ordinary Services may be charged unless required because of the Company's breach.
- S3.11** The Company shall make available information reasonably necessary to demonstrate compliance with these processor obligations and permit proportionate audits no more than once annually, on reasonable notice, during Business Hours and subject to confidentiality and security restrictions, unless a breach or

regulator reasonably requires otherwise. The Client bears reasonable audit costs unless material non-compliance is found.

- S3.12** The Company shall promptly inform the Client if, in its reasonable opinion, an instruction infringes applicable data-protection law and may suspend the affected processing while the parties resolve the issue.

3. Sub-processors and transfers

- S3.13** The Client gives general written authorisation for the Company to use sub-processors required to provide the Services, including hosting, backup, remote-management, security and support suppliers.

- S3.14** The Company shall impose data-protection obligations on sub-processors that are no less protective in substance than these terms and remains responsible for their performance as required by applicable law.

- S3.15** The Company shall provide information about material sub-processors on request and give reasonable advance notice of a new sub-processor where practicable. The Client may object on reasonable data-protection grounds. If no reasonable alternative is available, either party may terminate the affected Service on written notice, subject to committed third-party Charges.

- S3.16** Restricted international transfers shall use an adequacy regulation, the UK International Data Transfer Agreement or Addendum, or another lawful transfer mechanism, together with supplementary measures where required.

4. Client obligations and end of processing

- S3.17** The Client warrants that it has a lawful basis and all required notices, permissions and authority for the Company to process Client Data as instructed. The Client is responsible for data accuracy, minimisation, retention decisions and responding to data-subjects and regulators as controller.

- S3.18** At the Client's choice, the Company shall return or delete personal data after the Service ends, except to the extent continued retention is required by law or data remains in backup cycles that cannot reasonably be isolated. Such retained data remains protected and is not used for another purpose.